

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
WENDY RIVERA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. MERLIN SAHMANOVIC,
Shield No. 3536, Individually and in His Official Capacity,
and P.O.s "JOHN DOE" # 1-10, Individually and in Their Official
Capacities, (the name John Doe being fictitious, as the true names
are presently unknown),

Defendants.
-----X

Index No.

Plaintiff designates
RICHMOND County
as the place of trial

SUMMONS

The basis of this
venue is where the
incident arose

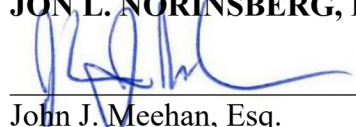
TO THE ABOVE-NAMED DEFENDANT(S):

- The City of New York, 100 Church Street, New York, NY 10007
- P.O. Merlin Sahmanovic, Shield No. 3536, 116 Main Street, Staten Island, NY 10307

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 11, 2019

JON L. NORINSBERG, PLLC



John J. Meehan, Esq.
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
Tel.: (212) 791-5396
Fax: (212) 406-6890

Defendant(s)' Address:

The City of New York
100 Church Street
New York, NY 10007

P.O. Merlin Sahmanovic
Shield No. 3536
116 Main Street
Staten Island, NY 10307

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X WENDY RIVERA, Plaintiff, -against- THE CITY OF NEW YORK, P.O. MERLIN SAHMANOVIC, Shield No. 3536, Individually and in His Official Capacity, and P.O.s "JOHN DOE" # 1-10, Individually and in Their Official Capacities, (the name John Doe being fictitious, as the true names are presently unknown), Defendants. -----X	<u>COMPLAINT</u> Plaintiff designates Richmond County as the Venue of this action, as Richmond County is the location where the incident arose.
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Plaintiff, WENDY RIVERA, by her attorneys, Jon L. Norinsberg, PLLC, complaining of the Defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of her civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also brings this action for violation of her rights under New York State law.

PARTIES

2. Plaintiff is a Hispanic female and at all relevant times a resident of the County of Richmond, in the City and State of New York.

3. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of

a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

5. At all times hereinafter mentioned, the individually named defendants, P.O. MERLIN SAHMANOVIC, and P.O.s "JOHN DOE" # 1-10, were and still are individuals employed as police officers, detectives, agents and servants and/or employees of said department and were acting under the supervision of said department and according to their official duties.

6. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting within the scope of their employment by Defendant, City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting in furtherance of their employment with defendant, City of New York.

FACTS

9. On or about April 25, 2017, at approximately 8:00 A.M., Plaintiff WENDY RIVERA was lawfully present at her residence, located at 18 Lyndale Lane, in the County of Richmond, in the City and State of New York.

10. Thereafter, defendant police officers began to bang on the door of plaintiff WENDY RIVERA's house.

11. Plaintiff WENDY RIVERA was then arrested and charged with, *inter alia*, Criminal Possession of a Firearm, Endangering the Welfare of a Child, Criminal Possession of a Forged Instrument, Criminal Possession of a Weapon, and Unlawful Possession of Marijuana.

12. At no time on April 25, 2017, did plaintiff WENDY RIVERA ever possess a firearm, much less any weapon.

13. At no time on April 25, 2017, did plaintiff WENDY RIVERA ever possess narcotics of any kind.

14. At no time on April 25, 2017, did plaintiff WENDY RIVERA ever possess any forged instruments of any kind.

15. At no time on April 25, 2017 did plaintiff WENDY RIVERA ever endanger any children.

16. There was no physical evidence connecting Plaintiff WENDY RIVERA to any narcotics, or weapons or forged instruments.

17. There was no forensic evidence connecting Plaintiff WENDY RIVERA to any narcotics, or weapons or forged instruments.

18. There was no DNA evidence connecting Plaintiff WENDY RIVERA to any narcotics, or weapons or forged instruments.

19. The only “evidence” connecting plaintiff WENDY RIVERA to any alleged crime came from defendant P.O. SAHMANOVIC, who claimed, falsely, that he found guns, drugs, and forged instruments in the family room of the house.

20. In connection with Plaintiff WENDY RIVERA’s unlawful arrest, defendant officers intentionally filled out false and misleading reports, and forwarded these false reports to prosecutors in the Richmond County District Attorney’s office.

21. Further, defendant officers withheld from prosecutors material exculpatory information which would have resulted in the exoneration of Plaintiff WENDY RIVERA.

22. As a result of her unlawful arrest, Plaintiff WENDY RIVERA spent approximately

two (2) weeks in jail, and made numerous court appearances thereafter, in order to defend herself against the false charges defendants had filed against her.

23. Additionally, plaintiff lost custody of her children for over one year as a result of the false charges filed against her.

24. On October 31, 2018, all charges against plaintiff WENDY RIVERA were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION
(Violation of the Civil Rights Pursuant to 42 U.S.C. § 1983)

25. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

26. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

27. All of the aforementioned acts deprived Plaintiff WENDY RIVERA of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or corrections officials, with all the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

31. The acts complained of deprived Plaintiff WENDY RIVERA of her right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from searches not based upon probable cause;
- D. To be free from unwarranted and malicious criminal prosecution; and
- E. To receive equal protection under the law.

32. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00), and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest Under 42 U.S.C. §1983)

33. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

34. As a result of the aforesaid conduct by defendants, Plaintiff WENDY RIVERA was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without probable cause privilege or consent.

35. The aforesaid actions by the defendants constituted a deprivation of the Plaintiff's rights, privileges and/or immunities secured by the Constitution and laws of the United States of America.

36. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00), and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS FOR A THIRD CAUSE OF ACTION
(Malicious Prosecution Under 42 U.S.C. § 1983)

37. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

38. Defendants misrepresented and falsified evidence before the District Attorney.

39. Defendants did not make a complete and full statement of facts to the District Attorney.

40. Defendants withheld exculpatory evidence from the District Attorney.

41. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff WENDY RIVERA.

42. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff WENDY RIVERA.

43. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

44. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff WENDY RIVERA.

45. Defendants lacked probable cause to continue criminal proceedings against Plaintiff WENDY RIVERA.

46. Defendants acted with malice in continuing criminal proceedings against Plaintiff WENDY RIVERA.

47. Defendants misrepresented and falsified evidence throughout all phases of the

criminal proceedings.

48. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in Plaintiff WENDY RIVERA's favor on October, 31, 2018, when all charges were dismissed against her.

49. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00), and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A FOURTH CAUSE OF ACTION
(Denial of Constitutional Right to a Fair Trial Under
42 U.S.C. § 1983 Based on Fabricated Evidence)

50. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

51. Defendants created false evidence against Plaintiff WENDY RIVERA.

52. Defendants forwarded false evidence and false information to prosecutors in the Richmond County District Attorney's Office.

53. In creating false evidence against Plaintiff WENDY RIVERA, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

54. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and she was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

55. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A FIFTH CAUSE OF ACTION
(Malicious Abuse of Process Under 42 U.S.C. § 1983)

56. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

57. The aforementioned individual defendants issued legal process to place Plaintiff WENDY RIVERA under arrest.

58. The aforementioned individual defendants arrested Plaintiff WENDY RIVERA in order to obtain a collateral objective outside the legitimate ends of the legal process.

59. The aforementioned individual defendants acted with intent to do harm to Plaintiff WENDY RIVERA, without excuse or justification.

60. As a result of the foregoing, Plaintiff WENDY RIVERA sustained, *inter alia*, deprivation of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of her constitutional rights.

61. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A SIXTH CAUSE OF ACTION
(False Arrest Under N.Y. State Law)

62. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

63. Plaintiff has complied with all the conditions precedent of the bringing of this action and has complied with all provisions of the Charter of the City of New York, and the Plaintiff has, prior to the bringing of this action and within ninety days from the dismissal of all charges hereinafter described, duly served notice upon the Corporation Counsel and the Comptroller for the City of New York of their intention to sue upon the claim set forth. More than thirty days have elapsed since the presentation of the Notice of Claim on December 4, 2018, and that the said claim remains unadjusted and the said Comptroller has failed and/or refused to make any adjustment thereof. Plaintiff appeared for a hearing pursuant to Municipal Law §50-h on April 17, 2019. The instant action is being filed within one year and ninety days of the date in which Plaintiffs' claims accrued.

64. The defendant police officers willfully and intentionally arrested Plaintiff without probable cause and without a reasonable basis to believe such cause existed.

65. By so doing, the defendant police officers subjected the Plaintiff to false arrest and imprisonment, and thereby violated and aided and abetted in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

66. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$10,000,000.00).

AND AS FOR AN SEVENTH CAUSE OF ACTION
(False Imprisonment Under N.Y. State Law)

67. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

68. As a result of the foregoing, Plaintiff WENDY RIVERA was falsely imprisoned for two weeks, her liberty was restricted, was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints.

69. Plaintiff WENDY RIVERA was conscious of said confinement and did not consent to same.

70. The confinement of Plaintiff WENDY RIVERA was without probable cause and was not otherwise privileged.

71. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AND AS FOR A EIGHTH CAUSE OF ACTION
(Malicious Prosecution Under N.Y. State Law)

72. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

73. Defendants misrepresented and falsified evidence before the District Attorney.

74. Defendants did not make a complete and full statement of facts to the District Attorney.

75. Defendants withheld exculpatory evidence from the District Attorney.

76. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff WENDY RIVERA.

77. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff WENDY RIVERA.

78. Defendants acted with malice in initiating criminal proceedings against Plaintiff WENDY RIVERA.

79. Defendants were directly and actively involved in the continuation of criminal m proceedings against Plaintiff WENDY RIVERA.

80. Defendants lacked probable cause to continue criminal proceedings against Plaintiff WENDY RIVERA.

81. Defendants acted with malice in continuing criminal proceedings against WENDY RIVERA.

82. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

83. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in Plaintiff WENDY RIVERA's favor on October 30, 2018, when all charges against her were dismissed.

84. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR A NINTH OF ACTION
(Negligent Hiring/Training/Retention Under N.Y. State Law)

85. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

86. Defendant THE CITY OF NEW YORK owed a duty to the public at large, including but not limited Plaintiff WENDY RIVERA, to exercise reasonable care in the selection, hiring and retention of all of its employees, and in particular, those employees with the job responsibility of dealing with the public at large.

87. Defendant THE CITY OF NEW YORK failed to use reasonable care when it hired defendant police officers.

88. Defendant THE CITY OF NEW YOK failed to make reasonable inquiries into the background of the subject defendants, and in particular, into their fitness as doctors and/or police officers.

89. Had defendant THE CITY OF NEW YORK used reasonable care in inquiring into the background of these defendants, it would have learned that they were patently unqualified for this position, and it would not have hired them.

90. As a result of the foregoing, defendant THE CITY OF NEW YORK breached its duty to use reasonable care in the selection and hiring of all of its employees.

91. As a result of THE CITY OF NEW YORK'S negligence in hiring defendants, Plaintiff WENDY RIVERA was falsely arrested, spend two weeks in jail, and lost custody of her children on completely baseless criminal charges.

92. Notwithstanding THE CITY OF NEW YORK'S knowledge of the propensities of these defendants, and their patently deficient qualifications, defendant CITY OF NEW YORK retained these defendants as employees.

93. In choosing to hire, and then retain, the subject defendants, defendant THE CITY OF NEW YORK breached its duty to the public at large, and to Plaintiff WENDY RIVERA in particular, to use reasonable care in the selection of its employees.

94. By reason of the foregoing, Plaintiff WENDY RIVERA is entitled to recover full compensatory damages, including damages for pain and suffering, severe emotional distress psychological trauma, past lost earnings and future lost earnings, from Defendant CITY OF NEW YORK.

95. As a result of the foregoing, Plaintiff WENDY RIVERA has been damaged in the amount of TWO MILLION DOLLARS (\$2,000,000.00) and is further entitled to punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00).

AS AND FOR AN TENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress Under N.Y. State Law)

96. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

97. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

98. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

99. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

100. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to Plaintiffs.

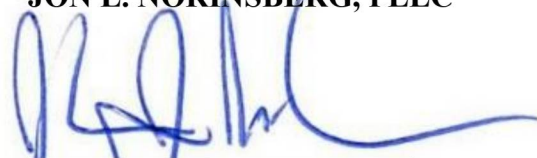
101. As a result of the aforementioned conduct, Plaintiff WENDY RIVERA suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

WHEREFORE, Plaintiff WENDY RIVERA demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$2,000,000.00;
- (2) On all causes of action, punitive damages in the amount of \$2,000,000.00; and
- (3) Costs and disbursements of this action, including attorney's fees, and for such other
and further relief as to this Court may deem just and proper.

Dated: New York, New York
July 11, 2019

JON L. NORINSBERG, PLLC



John J. Meehan, Esq.
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
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SUMMONS AND COMPLAINT

JOHN J. MEEHAN, ESQ.
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